



U.S. Department
of Transportation

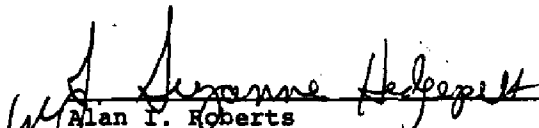
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10347 (EXTENSION)
ORIGINAL November 9, 1990

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 10347 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to July 31, 1994. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

SEP 04 1992,

(DATE)

Dist: PHWA FRA USCG

EXEMPTION HOLDER

APPLICATION DATE

PPG Industries, Inc.
Pittsburgh, PA

July 21, 1992



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

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DOT-E 10347

1. PPG Industries Inc., Pittsburgh Pennsylvania, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of a corrosive material which is toxic by inhalation for transportation in commerce subject to the limitations and special provisions herein. This exemption authorizes the shipment of trimethylacetyl chloride in DOT Specification 34 polyethylene drums of 55 gallon capacity, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on PPG Incorporated's application dated January 23, 1990, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Trimethylacetyl chloride, classed as a corrosive material (poison inhalation hazard material, meets criteria of 49 CFR 173.3a).

4. PROPER SHIPPING NAME (49 CFR 172.101). Trimethylacetyl chloride.

5. REGULATION AFFECTED. 49 CFR 173.3a, 173.247.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight and cargo vessel.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a DOT Specification 34 polyethylene drum, with a rated capacity of 55 gallons. Each drum must:

a. Be tested in accordance with 49 CFR 178.81-13 except that the hydrostatic test may be performed at a pressure of 49 psig in lieu of the cited 80 psig.

b. Pass a leakage test at a pressure of at least twice the pressure of the lading at 130 degrees F.

c. Have closures closed to a torque prescribed by the closure manufacturer with tightness being measured by a device capable of measuring torque.

d. Have closures physically held in place by any means capable of preventing back-off or loosening of closure by impact or vibration during transportation.

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Continuation of DOT-E 10347

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e. Have closures that are provided with a secondary, tamperevident cap seal that is properly applied in accordance with the cap seal manufacturer's recommendation, is capable of resisting 15 psig of internal pressure, and is incapable of removal from the closure without breaking or tearing.

8. SPECIAL PROVISIONS.

a. A copy of this exemption must be carried aboard each motor vehicle and cargo vessel used to transport packages covered by this exemption.

b. The following additional requirements apply to the transportation of trimethylacetyl chloride in DOT 34 polyethylene drums.

1. This exemption serves as a special packaging approval under the provisions of 49 CFR 173.3a(a)(3).

2. For highway transportation, each motor carrier used to transport packagings authorized by this approval must have a "Satisfactory" safety rating, as prescribed by Part 385 of 49 CFR. Written verification of the safety rating for each motor carrier must be obtained at least once each year. A current copy of the safety rating notification letter for each motor carrier must be submitted with the annual report required by this exemption.

3. For water transportation, the packagings must be stowed "on deck" only, as far from crew's quarters, other normally manned spaces and air intakes as reasonably practical.

4. When shipping packagings described in this exemption without a secondary overpack, the shipper must load the material, block and brace the material for transportation, in accordance with a prepared plan which precludes stacking (double decking), and must seal the freight container, transport vehicle, or motor vehicle used. Shipments in freight containers and transport vehicles must be from one origin to one destination only. No intermediate pick-up or delivery is authorized. Shipments by motor vehicle must be in exclusive use vehicles with the load properly blocked and braced after each stop-off in accordance with a shipper approved plan.

5. When shipping overpacked packagings described in this exemption, the overpack must be an all 16 gauge steel drum conforming to 49 CFR 173.3(c), except

"Salvage Drum" marking is not authorized. The inside packaging must be isolated from the overpack by a shock-mitigating, non-reactive material. There must be a minimum of two inches of cushioning material around the body of the inner packaging, and at least three inches on the top and bottom, between the inner packaging and outer drum.

6. In addition to the requirements of 49 CFR 171.15 and 171.16, the Office of Hazardous Materials Exemption and Approvals must be notified of any incident involving damage to the packaging or loss of contents of material shipped under this exemption;

7. The Office of Hazardous Materials Exemptions and Approvals shall be advised of the causes of the incident and any remedial action taken, as a result of the incident as soon as practical after its occurrence; and

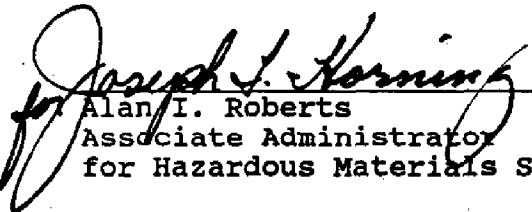
8. The Office of Hazardous Materials Exemptions and Approvals must be advised annually, within 30 days after the end of the calendar year, of the shipping experience of material covered by this approval. Failure to comply may result in immediate suspension of this exemption.

c. Each drum must be marked "DOT-E 10347" in letters and numbers at least 1/2 inch in height.

9. REPORTING REQUIREMENTS. Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. September 30, 1992.

Issued at Washington, D.C.:


for Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: USCG, FHWA, FRA